

26PR00167 Matter of the Van Iderstine Family Trust

County: santa-barbara

Division: Trust

Hearing date: 2026-07-01

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of the Van Iderstine Family Trust

Case Number

26PR00167

Case Type

Trust

Hearing Date / Time

Wed, 07/01/2026 - 09:30

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Recorded Title. Petitioner alleges title to a financial account is held by the trust, because the settlors of the subject trust transferred title to themselves as trustees, but never recorded title in the name of the trust. There is no evidence on file showing how title to the subject property is currently held. Since "a person may not transfer an estate or interest in property unless that person is the owner of the estate or interest in question or has the legal authority to act on that owner's behalf" (Restatement (Fourth) of Property § 1.1 (2024)), the Court must have evidence of how title is held:

The nemo dat principle is typically expressed in the full Latin phrase “nemo dat quod non habet,” which roughly translates to “one can only transfer what one owns” or, in the negative, “one cannot transfer property that one does not own.” It is sometimes called the “derivation principle” because the transferee’s interest derives from the transferor’s.

(Id., at cmnt. a. See also (Miller & Starr (2024) 3 Cal. Real Est. § 8:58 (4th ed.) § 8:58 [“It is axiomatic that a deed cannot convey more than is owned by the grantor. If a deed purports to convey property that is not owned by the grantor, it is ineffective to convey the property, and it is a “wild deed” that can have no effect on title of the person who holds real title to the property.”]; and Romero v. Shih (2024) 15 Cal.5th 680, 689 [citing same in Miller & Starr].)

Petitioner must submit Supplement containing sufficient explanation of how title is currently held to the financial account at issue, and attach evidence of that title (i.e. account statement(s)) to the Supplement.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Denise M. Hippach

SM Dept 1

312-M East Cook St. Building E

Santa Maria, CA 93454-5165

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